

Form No.HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT

LAHORE.

JUDICIAL DEPARTMENT

Case No: Cr. Misc. No.3110-B of 2020

Irfan Masih v. The State, etc.

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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10.03.2020 Rai Ghulam Mustafa, Advocate for the petitioner.
Mr. Sana Ullah, Deputy Prosecutor General with
Arshad SI.
Mr. Mustehsan Raza Awan, Advocate for the
complainant.

Petitioner having failed to get post arrest bail in case FIR No.176/2014 dated 28.06.2014 registered u/s 302/109 PPC at Police Station City Phool Nagar, District Kasur from the Court of learned Addl. Sessions Judge, Pattoki vide order dated 27.10.2017, has prayed the same relief through the instant petition.

2. Precisely, the case of the petitioner as spelt out from the contents of the FIR is that the petitioner on 27.06.2014 threw petrol and set fire on his wife Shazia Bibi, who later on succumbed to the injuries, hence, this case.

3. Pro and contra arguments have been heard. Record perused.

4. The main argument of learned counsel for the petitioner is that the petitioner has right to be admitted to post arrested bail on the statutory delay in conclusion of trial under clause (b) of 3rd proviso of section 497 (1) Cr.P.C. Record shows that the petitioner had been arrested in this case on 29.06.2014 and since then he is behind the bars. During the pendency of this petition, a report from the learned trial Court regarding the progress

in trial has been requisitioned, on perusal of the same, it transpires that the petitioner had been indicted in the instant case on 18.11.2014, thereafter, the same was amended on 10.04.2018 but since then there is no progress in the trial. Learned trial Court has categorically stated in the said report that major responsibility for the delay in trial is on the complainant party, who is not cooperating with the Court, to produce evidence, although during this period the accused had also procured five adjournments. So under the circumstances, I find that the delay in conclusion of trial has mainly been caused by the prosecution or Court itself. Even if, the adjournment sought by the accused were excluded, his total detention during the trial is more than 2 years. Despite lapse of about 5 ½ years since his indictment, not a single witness had been recorded during the trial. Even otherwise, speedy trial is a right of every accused, therefore, unnecessary delay in conclusion of trial in such like cases would amount to denial of Justice.

5. It has been consistently held by the superior Courts of the country that if a case, on such statutory delay in conclusion of trial, is made out then ordinarily bail should not be refused on hyper technical grounds. Reliance in this regard may be placed on the ratio decidendi laid down by the august Supreme Court of Pakistan in case of “ADNAN PRINCE v. THE STATE though P.G. Punjab and others” (PLD 2017 SC 147). Under the circumstances, I find that inordinate and shocking delay in conclusion of trial has made out the case of present petitioner for grant of post arrest bail, which cannot be refused on any ground much less justifiable.

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6. In the light of above discussion, this petition is allowed and the petitioner is admitted to post arrest bail subject to his furnishing bail bonds in the sum of Rs.2,00,000/- with one surety in the like amount to the satisfaction of learned trial Court. Before parting with this order, I observe that since an inordinate and unexplained delay has been occasioned to conclude the trial, hence, the learned trial Court seized with the matter is directed to conclude the same expeditiously, preferably within a period of three months from the date of receipt of certified copy of this order.

(MUHAMMAD WAHEED KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

Sajid